

"a conclusion of lack of novelty ought not to be reached unless the prior art document contains a clear and unmistakable disclosure of the subject-matter of the later invention" (see also T 677/91, T 763/07).

In T 305/87 (OJ 1991, 429) the board considered it expedient to state that, in order to assess novelty, it was not sufficient to limit oneself to the contents of a single document taken as a whole, but rather it was necessary to consider separately each entity described therein. It was not permissible to combine **separate items belonging to different embodiments** described in one and the same document merely because they were disclosed in that one document, unless of course such combination had been specifically suggested there. In the case at issue, the two shears known from the catalogue were therefore definitely two separate entities forming two independent bases for comparison which ought to be considered in isolation when assessing novelty, and it was not admissible to piece together artificially a more relevant state of the art from features belonging to one or both of these entities, even if they were both disclosed in one and the same document (see T 901/90, T 931/92 and T 739/93, T 763/07).

In T 332/87 the board, after having recalled that the disclosure of a document normally had to be considered as a whole, held that, when examining novelty, different passages of one document might be combined, provided that there were no reasons which would prevent a skilled person from making such a combination. In general, the technical teaching of examples might be combined with that disclosed elsewhere in the same document, e.g. in the description of a patent document, provided that the example concerned was indeed representative of, or in line with, the general technical teaching disclosed in the respective document (see also T 1630/07, T 2188/08, T 1239/08, T 568/11).

According to established case law, the disclosure of a patent document does not embrace the combination of individual features claimed in separate dependent claims if such combination is not supported by the description (cf. T 525/99, T 496/96, T 42/92).

In T 42/92 it was explained, in accordance with the boards' established case law, that a pre-published patent specification formed part of the state of the art under Art. 54(2) EPC 1973 only as regards those elements which the person skilled in the relevant art would incontestably infer from the document as a whole. The disclosure of a prior-art patent specification did not however cover combinations of individual features arising from **reference back to the claims** if those features were claimed separately for patent-law considerations and combining them was not supported by the description, or even – as here – was at odds with the embodiments described.

In decision T 610/95 (incorporation by reference), in view of the objection of lack of novelty, the question to be answered was whether or not the proposed solution in the patent was derivable directly and unambiguously from the disclosure of citation (2), which contained **cross-references** to the entire content of **three patent specifications** without giving priority to any of these references. Each of these references offered a plurality of different options for preparing pressure-sensitive layers of medical dressings. The board held that, under these circumstances, it could not be said that the use of the specific product acting

as pressure-sensitive material in the claimed invention was directly and unambiguously derivable from the wholly general reference to the three different prior documents quoted in citation (2) and had therefore already been made available to the public.

4.3. Taking implicit features into account

According to the boards' established case law, a prior art document anticipates the novelty of claimed subject-matter if the latter is directly and unambiguously derivable from that document, including any features implicit to a person skilled in the art. However, an alleged disclosure can only be considered "implicit" if it is immediately apparent to the skilled person that nothing other than the alleged implicit feature forms part of the subject-matter disclosed (T 95/97, T 51/10). In other words, a prior art disclosure is novelty-destroying if the subject-matter claimed can be inferred directly and unequivocally from that disclosure, including features which for the skilled person are implicit in what is explicitly disclosed (see T 677/91; T 465/92, OJ 1996, 32; T 511/92; and T 2170/13, which is a more recent decision finding that the feature at issue was implicitly disclosed in the prior art and devoting lengthy technical arguments to the point).

The limitation to subject-matter "derivable directly and unambiguously" from the document is important. According to the boards' case law on assessing novelty, the teaching of a document, independent of its nature, is not to be interpreted as embracing equivalents not disclosed in that document (see also T 167/84, T 517/90, T 536/95).

In T 701/09 the board found that direct and unambiguous disclosure was not limited to explicit or literal statements, but equally included implicitly disclosed information which a reader skilled in the art would unequivocally gather from the overall context of a cited document.

In T 1523/07 the board observed that it is a generally applied principle that for concluding lack of novelty, there must be a direct and unambiguous disclosure, either explicit or implicit, in the state of the art which would inevitably lead the skilled person to subject-matter falling within the scope of what is claimed. In this context "implicit disclosure" means disclosure which any person skilled in the art would objectively consider as necessarily implied in the explicit content, e.g. in view of general scientific laws. In this respect, the term "implicit disclosure" should not be construed to mean matter that does not belong to the content of the technical information provided by a document but may be rendered obvious on the basis of that content. Whilst common general knowledge must be taken into account in deciding what is clearly and unambiguously implied by the explicit disclosure of a document, the question of what may be rendered obvious by that disclosure in the light of common general knowledge is not relevant to the assessment of what is implied by the disclosure of that document. The implicit disclosure means no more than the clear and unambiguous consequence of what is explicitly mentioned (see T 823/96, T 297/11). Implicit disclosure means disclosure which any person skilled in the art would objectively consider as necessarily implied in the explicit content (T 2522/10 of 16 April 2015). T 1523/07 was cited in T 1085/13 (novelty of higher degree of purity).

In T. 51/10 the board held, in summary, that, for a feature to be "implicit", it was essential that it could be unequivocally gathered from the overall context of a cited document (T. 701/09) or necessarily followed from that context (T. 1523/07). In particular, the skilled person had to be unable to conceive of any realistic alternative to the allegedly implicit feature (T. 287/16).

In T. 6/80 (OJ 1981, 434) the board found that where a further functional attribute of an element of a **device** disclosed in a document was immediately apparent to a person skilled in the art reading the document, such attribute formed part of the state of the art with regard to that device.

In T. 666/89 (OJ 1993, 495) the board stated that the term "available" clearly went beyond literal or diagrammatical description, and implied the communication, express or implicit, of technical information by other means as well. One example of the available **information content of a document** extending beyond this literal descriptive or diagrammatical content was the case where the carrying out of a **process**, specifically or literally described in a prior art document, **inevitably resulted in a product** not so described. In such a case the prior art document would deprive a claim covering such a product of novelty. It was thus content, express and implied, rather than mere form, that was decisive for the issue of novelty in general, and "selection" novelty in particular (T. 793/93).

In T. 270/97 the opposition division considered the claimed product to be anticipated by the agent produced and inevitably obtained by repeating examples 1 and 2 of a prior art document. The board noted that it was a well-established principle laid down in the case law since T. 12/81 (OJ 1982, 296) that the product inevitably resulting from a process properly defined as to its starting substance and reaction conditions was considered to be disclosed even if it was not cited *expressis verbis* in the prior art document. The board, however, found that the method disclosed in the text of example 2 implied a way of acting not envisaged in the method according to the patent in suit. The parties' attempts to show that the particles obtained according to example 2 were, or were not, identical to the products of the patent in suit, produced highly contradictory results. Therefore, the board could only conclude that depending on experimental conditions not disclosed in example 2 different products might be obtained. Thus, the claimed product was not inevitably obtained by following the method of example 2.

In T. 583/01 the board, following T. 270/97, stated that novelty was a question of inevitability and not a question of probability.

The patent at issue in T. 1456/14 was for a vacuum cleaner with a filter and its claim 1 was directed to the proportion of total length to area. That no total length was disclosed in the cited prior-art document was, the board held, irrelevant for the purposes of assessing novelty if it could be demonstrated that it undoubtedly covered the claimed proportion nonetheless. To do so, it sufficed to show that even a smaller numerical value necessarily exceeded by the prior-art device would be in keeping with the claimed proportion, as this meant the prior-art document definitely had to encompass that proportion too. Whether a known device had an implicit (or even explicit) feature did not depend on whether or not the skilled person's attention was likely to be drawn to precisely that feature but on

whether, from a purely objective perspective, it had to have that feature. For the criterion of "direct and unambiguous disclosure" to be met, it was not essential that the skilled person would realise the feature was included even without knowing about the patent. EPO departments were to examine disclosure with the eyes and understanding of the skilled person, but that did not mean they did not do so purposively, in full knowledge of the feature they were looking for. Such an approach did not amount to an impermissible consideration of equivalents.

In T 518/91 the board held that the logical interpretation by a skilled person of technical facts explicitly stated in a prior document – in particular the definition beyond the explicit disclosure of the document of features of the prior art described in general terms – was not part of the technical teaching implicitly derivable from the document, which the skilled person would automatically infer, if it contradicted other explicit technical information in the otherwise consistent overall disclosure of the document.

In T 2387/13 (no implicit disclosure of a possible use) the board stated that the mere fact that the disclosed electrical transmission line in D2 could be used as a sensor did not mean that a sensor was disclosed. In order for such a use to be possible, there would have to be further installations. Such installations were, however, not disclosed.

In T 624/91 it was held that exact **disclosures for alloy compositions** in the state of the art had to be interpreted as average or nominal values within a small range in view of known fluctuations in reproducibility and in analytical results, unless there was evidence available to the contrary. The board pointed out that, whenever a metallurgist aimed at producing an alloy in accordance with a given nominal composition, the composition of the final product would deviate somewhat from this target or even be undefined within certain narrow limits. The metallurgical production process was not ideally reproducible and the actual composition of different batches aiming at the same nominal composition would be spread over a certain area around this target (see also T 718/02, T 324/12).

In T 71/93 it was held that a feature not explicitly mentioned in a prior art document, even though generally known to help overcome a drawback usual in the same technical field, could not be considered implicitly disclosed if it were not directly derivable from the prior art document that the drawback was considered unacceptable and/or if other solutions were proposed for overcoming the drawback.

In T 572/88 and T 763/89 the boards warned against using the concept of "implicit prior description" in such a way that considerations relevant to the evaluation of inventive step were transferred to the assessment of novelty. A fair assessment of an invention's patentability called for a clear distinction between novelty and inventive step. In decision T 763/89, for example, the opponent could not claim "implicit prior description" for a material with exactly three layers, as claimed in the disputed patent, on the grounds that a skilled person, aware of the considerable outlay required for further sub-layers and the limited improvement in the quality of the image they bring, would have understood the wording of the claim, which set no upper limit for the number of layers, to be virtually synonymous with "two or three layers". To do so would be to adduce a typical criterion for the evaluation of inventive step.

Likewise in T.71/93, the board held that an "implicit prior description" of a feature could not be based on the grounds that a person skilled in the art would have been aware of some disadvantages and of the lack of other forms of improvement related to a feature, since this was a criterion for the evaluation of inventive step.

4.4. Taking intrinsic features into account

In T.59/87 (OJ 1991, 561) the respondent had contended that a particular document inherently disclosed the claimed invention and was therefore destructive of novelty. However, the board stressed that decision G.2/88 (OJ 1990, 93, Corr. 469) emphasised that the question to be decided was what had been made available to the public, not what might have been inherent in what was made available to the public. Furthermore, when considering how far the teaching in a written description also made the inevitable result of carrying out such teaching available to the public, in each case "a line must be drawn between what is in fact made available and what remains hidden or otherwise has not been made available". Thus, the board decided that whether a previously undisclosed technical effect, which in fact inevitably occurred when a previously disclosed technical teaching in a written description was carried out, had been made available to the public by reason of the teaching in the written description was a question of fact which had to be decided in the context of each individual case.

G.1/92 (OJ 1993, 277) further stipulated that a commercially available product did not per se implicitly disclose anything beyond its composition or internal structure. Other characteristics, which were only revealed when the product was exposed to interaction with specifically chosen outside conditions in order to provide a particular effect or result, or to discover potential results or capabilities, therefore pointed beyond the product per se as they were dependent on deliberate choices being made and thus could not be considered as already having been made available to the public.

Further to this decision, the board held in T.977/93 (OJ 2001, 84) that a product made available to the public was not reproducible within the meaning of G.1/92, and thus did not belong to the state of the art, if the skilled person could not establish that the reproduced product was identical to the commercially available one, because the intrinsic and extrinsic features of the product were not accessible and there was a high probability of variation upon reproduction.

4.5. Taking equivalents into account

The case law of the boards of appeal is based on a narrow concept of novelty, i.e. the disclosure of a prior document does not include equivalents of the features which are explicitly or implicitly disclosed; equivalents can only be taken into account when it comes to considering inventive step (T.517/90). This narrow concept of novelty, which excludes equivalents, is of particular importance for the application of Art. 54(3) EPC. In T.167/84 (OJ 1987, 369) the board commented that conflicting applications within the meaning of Art. 54(3) EPC 1973 were included in the state of the art solely from the point of view of novelty, but were considered in the light of their "whole contents". In order to mitigate the harsh effects of the "whole contents approach", its application was confined to novelty.